

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Volha Shauchenka	Team: Squad #11	CCRB Case #: 201801406	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/16/2018 6:44 PM, Sunday, 02/18/2018 12:00 AM	Location of Incident: Targee Street and West Fingerboard Road; Old Town Road and N Railroad Ave; rear of 323 Victory Blvd.	18 Mo. SOL 8/16/2019	Precinct: 122		
Date/Time CV Reported Sun, 02/18/2018 9:00 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 02/18/2018 9:00 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Lam	25229	963106	122 PCT
2. SGT Andrew Kinsella	05555	922593	GANG SI
3. POM Michael Devito	25734	958498	122 PCT
4. An officer			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Stephen Furno	07578	948028	GANG SI
2. POM Craig Sikorski	00962	949913	GANG SI

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: On February 16, 2018, at Targee Street and West Fingerboard Road, in Staten Island, an officer stopped the vehicle in which § 87(2)(b) was an occupant.	A . Officer(s) Unidentified
B . POM Michael Lam	Abuse: On February 18, 2018, at Old Town Road and North Railroad Avenue, in Staten Island, Police Officer Michael Lam stopped the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Michael Devito	Abuse: On February 18, 2018, at Old Town Road and North Railroad Avenue, in Staten Island, Police Officer Michael Devito stopped the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		
E . SGT Andrew Kinsella	Abuse: On February 18, 2018, in the rear of 323 Victory Boulevard, in Staten Island, Sergeant Andrew Kinsella stopped the vehicle in which § 87(2)(b) was an occupant.	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On or about February 18, 2018, § 87(2)(b) filed this complaint via the CCRB Call Processing System. The system was experiencing technical difficulties at the time and the date when the complaint was received was noted as February 17, 2018. On February 19, 2018, § 87(2)(b) filed duplicate complaints with IAB generating logs #18-6877 and 18-6880.

On February 16, 2018, at approximately 6:44 p.m., at Targee Street and West Fingerboard Road in Staten Island, an officer allegedly stopped § 87(2)(b) while he was operating his 1991 blue Lexus LS400 with Pennsylvania license plate § 87(2)(b) (**Allegation A: Abuse of Authority, Officer Unidentified**). On February 18, 2018, at approximately 7:45 p.m., at Old Town Road and North Railroad Avenue in Staten Island, PO Michael Lam and PO Michael Devito of the 122nd Precinct, at the time of the incident, stopped § 87(2)(b) while he was driving his vehicle (**Allegations B and C: Abuse of Authority, Unsubstantiated**). On the same day, at approximately 7:58 p.m., in the rear of 323 Victory Boulevard in Staten Island, Sgt. Andrew Kinsella of Gang Squad Staten Island also stopped § 87(2)(b) while he was operating his vehicle (**Allegation E: Abuse of Authority, Unsubstantiated**). § 87(4-b), § 87(2)(g)).

There are no video recordings associated with the incidents.

Findings and Recommendations

Allegation (A): Abuse of Authority: On February 16, 2018, at Targee Street and West Fingerboard Road, in Staten Island, an officer stopped the vehicle in which § 87(2)(b) was an occupant.

In his verified statement to the CCRB, § 87(2)(b) alleged that on February 16, 2018, at Targee Street and West Fingerboard Road in Staten Island, he was stopped by an officer described as a white male, 6'- 6'1" tall, 220 - 225 pounds with dark hair, between 28 and 35 years old, in uniform, driving a marked police vehicle [BR 06]. Although he had a partner who stood in the rear of the car, § 87(2)(b) did not provide his description. The officer informed § 87(2)(b) that his registration was not active and after § 87(2)(b) provided his registration to the officer, he stated it was "fine" but his brake light was out. § 87(2)(b) informed the officer that was not true. The officer checked § 87(2)(b)'s driver's license in his vehicle and let him go without issuing any summonses. § 87(2)(g) [BR 01, 02, 03, 04, 05, 07, 13].

Warrant audit report for § 87(2)(b) indicates that PO Anthony Gomez of the 122nd Precinct ran a check for him at 6:45 p.m., on February 16, 2018 [NYPD 08]. According to the 122nd Precinct Tour 3 Roll Call for that day, PO Gomez was working with PO Joseph Ranola and was assigned as NCO for sector B [NYPD 05]. According to NYPD records, PO Gomez is a black male, 6' tall, 275 pounds with black hair, and was § 87(2)(b) at the time of the incident; PO Ranola is a white male, 5'10" tall, 215 pounds with brown hair, and was § 87(2)(b) at the time of the incident [NYPD 14].

In his testimony to the CCRB, PO Ranola stated he was not involved in that car stop [BR15]. He explained that he was assigned as an NCO for sector B and could not leave his sector. PO Ranola was working with PO Anthony Gomez of the same command until 6:00 p.m., after which PO Yassir Zahroof became his partner. They were at a stationary post at Richmond Road and Jefferson Avenue, and the incident took place within sector C. According to his memo book, at 6:45 p.m., PO Ranola issued a summons in regards to a car stop at Jefferson Avenue and Hylan Boulevard. He then conducted directed patrol at the same location. PO Ranola did not recognize § 87(2)(b) after reviewing his photo. Upon reviewing the results of the warrant audit report, PO Ranola reiterated that PO Gomez left at 6:00 p.m. but his credentials could have been logged into the vehicle tablet. However, PO Ranola did not recall interacting with § 87(2)(b) and noted that he did not switch vehicles on that day. PO Ranola was the operator of the car.

According to PO Gomez's memo book, he finished his tour at 5:30 p.m. on that night [NYPD 10]. Based on NYPD records, PO Zahroof is an Asian male, 5'11" tall, 140 pounds with black hair, and was § 87(2)(b) at the time of the incident [NYPD 14]. It is noted in his memo book that at 6:30 p.m., he became PO Ranola's partner and at 6:58 p.m., he issued a summons at Hull Avenue and Richmond Road [NYPD 11]. Neither PO Gomez nor PO Zahroof fit § 87(2)(b)'s description of the subject officer.

According to 122nd Precinct Tour 3 Roll Call for that day, PO Thomas Leonardo and PO Michael Gagliano were assigned to sector C [NYPD 05]. Based on NYPD records, PO Gagliano is a white male, 5'10" tall, 215 pounds, with blue eyes, bald, and is was § 87(2)(b) at the time of the incident; PO Leonardo is a white male, 5'8" tall, 215 pounds, with brown eyes and black hair, and was § 87(2)(b) at the time of the incident [IA163]. According to PO Leonardo's memo book, he was at 77 Chicago Avenue at 6:15 pm, which is approximately six minutes away by car from the incident location, and at 289 Westwood Avenue at 6:57 pm, which is approximately 12 minutes away from it [NYPD 15]. He then went to 92 Ocean Avenue at 7:04 pm, which is approximately eight minutes away from the incident location.

When interviewed at the CCRB, PO Leonardo denied stopping § 87(2)(b) and stated that he was near 289 Westwood Avenue near the time of the incident, which is located a few miles away and is better reached via a highway [BR 24]. PO Leonardo denied being in the immediate vicinity of the incident location and noted that Clove Road and Targee Street was the closest he was to the location of the stop but that occurred at 4:10 pm. PO Leonardo did not recognize § 87(2)(b) and denied conducting any vehicle stops on that day. He did not know if he conducted any warrant checks on that day either. PO Leonardo stayed with his partner the entire tour.

During a photo viewing session conducted on September 4, 2018, § 87(2)(b) was unable positively identify the subject officer. He pointed out PO Leonardo and PO Ranola as the officers who match the description closely initially stating he would "pick" PO Leonardo based on his description. However, § 87(2)(b) noted he did not specifically recall interacting with this officer. Following the photo viewing session, § 87(2)(b) indicated in an email he believed that PO Ranola may have been the subject officer and his hair might have just seemed dark since it was night time.

§ 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that **Allegation A** be closed as **officer unidentified**.

Allegation (B): Abuse of Authority: On February 18, 2018, at Old Town Road and North Railroad Avenue, in Staten Island, Police Officer Michael Lam stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (C): Abuse of Authority: On February 18, 2018, at Old Town Road and North Railroad Avenue, in Staten Island, Police Officer Michael Devito stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that on February 18, 2018, at approximately 7:30 p.m., he was stopped by a white male officer, 5'9" – 5'10" tall, 180 – 200 pounds with black hair, in his mid-30s, in uniform, driving a marked police vehicle [BR 06]. § 87(2)(b) provided no description for the officer's partner. Prior to the stop, the police car followed § 87(2)(b) all the way from Garretson Avenue, where he first observed the officers. During the stop, the subject officer informed § 87(2)(b) he was stopped for illegal tinting on his windows, and § 87(2)(b) replied that the tinting was legal. § 87(2)(b) acknowledged to the undersigned that the rear passenger and back windows had a 70% factory tint. The officer tested the tinting level on the left passenger window of § 87(2)(b)'s car, and the result was 70%. Since § 87(2)(b) did not have his driver's license on him, he provided his vehicle registration, insurance, name, date of birth and social security number. The officer went into his car for a few minutes and then returned § 87(2)(b)'s documentation to him and let him go without issuing him any summonses. § 87(2)(g)

§ 87(2)(b) [BR 01, 02, 03, 04, 05, 07, 13].

Warrant audit report for § 87(2)(b) indicates that PO Anthony Lam of the 122nd Precinct ran a check for him at 7:45 p.m., on February 18, 2018 [NYPD 08]. According to the 122nd Precinct Tour 3 Roll Call for that day, PO Lam was working with PO Michael Devito and they were assigned to sector B2 [NYPD 05]. Based on NYPD records, PO Lam is a white male, 5'9" tall, 185 pounds with brown hair, and was § 87(2)(b) at the time of the incident; PO Devito is a white male, 5'9" tall, 165 pounds with brown hair, and was § 87(2)(b) at the time of the incident [NYPD 14].

During his testimony at the CCRB, PO Lam testified that he did not recall where he was at the time of the incident [BR 14]. He confirmed he was working with PO Devito the entire tour and noted he was the recorder in the vehicle. Based on his memo book, PO Lam issued a summons at 7:30 p.m. at 232 Garretson Avenue, and he stated he was unaware what happened to § 87(2)(b) during the incident. PO Lam did not recognize § 87(2)(b) after reviewing his photo. When provided a brief overview of the incident, PO Lam stated he had no independent recollection of it but acknowledged that he and his partner conducted several car stops during their tour. PO Lam also noted that he would not have documented a vehicle stop if it did not result in a summons. After reading his memo book entry regarding directed patrol at 73 Remsen Street, PO Lam indicated he did not know how close it was to Old Town Road and North Railroad Avenue but

confirmed that both locations are within sector B. Upon reviewing warrant audit report results, PO Lam stated he and his partner could have stopped § 87(2)(b) but he did not recall that. PO Lam indicated that since he was the recorder, his credentials were logged into the computer installed in the vehicle, which would have been used for the warrant check.

PO Devito had no recollection of the incident either and stated he was not familiar with § 87(2)(b) [NYPD 19]. He confirmed his assignment and noted that he only switched partners and posts at 11:15 p.m. PO Devito was the operator of the vehicle and noted to see the recorder in his memo book at 3:00 p.m. However, PO Devito documented two vehicle stops conducted at 6:35 p.m., at Midland Avenue and Olympia Boulevard and at 8:22 p.m., at 133 Zoe Street. PO Devito explained that he made those entries because he personally issued summonses during the stops. PO Devito did not recall where he was between the two documented car stops nor did he recall being in the vicinity of the incident location. PO Devito did not recall if PO Lam issued any summonses during that tour but added that he would have probably noted those in his memo book. However, PO Devito indicated he would not necessarily document all the vehicle stops in his memo book. PO Devito did not recall conducting any vehicle stops for which no summonses were issued. Upon reviewing the warrant audit report, PO Devito stated that if it was noted that PO Lam ran a warrant check for § 87(2)(b) than he and his partner must have interacted with § 87(2)(b) but he had no recollection of that. PO Devito confirmed that since PO Lam was the recorder, he was in charge of operating the tablet in the vehicle and conducting the warrant checks.

According to Google Maps, Old Town Road and North Railroad Avenue is located six minutes away from 133 Zoe Street by car, where PO Lam and PO Devito conducted a vehicle stop at 8:22 p.m., and two minutes away from 73 Remsen Street by car, where they conducted directed patrol at 8:30 p.m. [BR 23]. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B** and **C** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Allegation (E): Abuse of Authority: On February 18, 2018, in the rear of 323 Victory Boulevard, in Staten Island, Sergeant Andrew Kinsella stopped the vehicle in which

§ 87(2)(b) was an occupant.

§ 87(2)(b) further alleged that on February 18, 2018, at approximately 8:00 p.m., he was again stopped by three officers in an unmarked vehicle at a parking lot of 323 Victory Boulevard [BR 06]. He described the officer he interacted with the most as a white male, 5'9" tall, 180 – 200 pounds with blond hair and in his late 20s. That officer informed § 87(2)(b) that he was being stopped for faulty headlights. The officer who conducted a warrant check on § 87(2)(b) was described as a white male, 5'10" tall, 210 pounds with dark hair in his 30s – 40s. The third officer, who mostly observed the incident and later informed § 87(2)(b) he was letting him go, was described as a white male, 6'2" – 6'3" tall, heavy set in his 40s. Since § 87(2)(b) did not have his driver's license during that stop either, officers attempted to check his name for some time and eventually released § 87(2)(b) without issuing him any summonses. After the stop, still at the same location, § 87(2)(b) took pictures of the front and rear lights on his car, which were all operational [See photos BR 09 - 12] § 87(2)(g) [BR 01, 02, 03, 04, 05, 07, 13].

Warrant audit report for § 87(2)(b) indicates that PO Stephen Furno and Sgt. Andrew Kinsella of Gang Squad Staten Island ran numerous checks for him between 7:58 p.m. and 8:11 p.m., on February 18, 2018 [NYPD 08]. According to NYPD records, PO Furno is a white male, 5'10" tall, 200 pounds, has black hair and was § 87(2)(b) at the time of the incident; Sgt. Kinsella is a white male, 6'2" tall, 250 pounds, has brown hair and is balding, and was § 87(2)(b) at the time of the incident [NYPD 14]. Based on Gang Squad Staten Island Movement Sheet for February 18, 2018, Sgt. Kinsella, PO Furno and PO Craig Sikorski left the command at 8:30 p.m. to conduct surveillance within the confines of the 120th and 121st Precincts [NYPD 07]. Based on NYPD records, PO Sikorski is a white male, 5'10" tall, 180 pounds, has blond hair and was § 87(2)(b) years old at the time of the incident [NYPD 14].

In their statements to the CCRB, PO Furno, PO Sikorski, and Sgt. Kinsella all confirmed they were working together on the day of the incident and interacted with § 87(2)(b) [BR 16, 17, 18]. PO Furno testified that the driver of their car, PO Sikorski, observed the car operated by § 87(2)(b) which had a broken tail light, at a location PO Furno did not recall [BR 16]. PO Sikorski informed his partners he was going to pull the vehicle over and at that point, PO Furno also observed the faulty tail light. However, PO Furno did not recall which tail light was not functioning. Before the officers were able to initiate the stop, § 87(2)(b) pulled into the parking lot of 323 Victory Boulevard and they followed him. PO Sikorski initiated contact with § 87(2)(b) and explained the reason for his stop to him. Since § 87(2)(b) did not have his driver's license on him, PO Furno attempted to run a check on him using the name he provided. Due to the fact that § 87(2)(b) has a common name, PO Furno needed some time to sort through the results, and § 87(2)(b) inquired why it was taking so long. Eventually, PO Furno determined that § 87(2)(b) had a valid driver's license, and PO Sikorski decided to let him go. PO Furno

explained that § 87(2)(b) was released without any summonses because the officers were not trying to make anyone's life harder, § 87(2)(b) had explained to them he was aware he had an issue with a tail light and it was confirmed he had a driver's license.

§ 87(2)(g)

PO Sikorski confirmed he was the operator of the vehicle but did not recall who was the officer who observed a broken, possibly left, tail light on § 87(2)(b)'s vehicle. PO Sikorski did not recall who decided to stop § 87(2)(b) and whether the officers had any discussion among themselves about that. PO Sikorski also indicated that PO Furno and Sgt. Kinsella were primarily interacting with § 87(2)(b) and verified his driver's license on their smartphones. PO Sikorski also did not recall who decided to let § 87(2)(b) go.

§ 87(2)(g)

Sgt. Kinsella confirmed that PO Sikorski was the one who observed § 87(2)(b)'s vehicle with a faulty head or tail light and informed Sgt. Kinsella he was going to pull him over. Sgt. Kinsella approved of the stop but noted that he never observed the defective lights at any point during the incident. Sgt. Kinsella also confirmed he used his discretion and released § 87(2)(b) with a warning to have his driver's license on him.

§ 87(2)(g)

§ 87(2)(b) Thus, it is recommended that **Allegation E** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two other CCRB complaints § 87(2)(b)
- PO Lam has been a member of the service for one year and this is the first CCRB complaint to which he has been a s subject.
- PO Devito has been a member of the service for three years and this is the first CCRB complaint to which he has been a s subject.

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- Sgt. Kinsella has been a member of the service for 19 years and has been a subject in seven other CCRB complaints and 11 allegations, of which two were substantiated.
 - 200300872 involved substantiated allegations of a frisk and/or search and refusal to provide name/shield number. The Board recommended Command Discipline A and the NYPD imposed that penalty.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On July 25, 2018, a request to determine if a Notice of Claim was filed was submitted; confirmation from the New York City Office of the Comptroller will be forwarded upon receipt [BR 21].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 15

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
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Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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